

MAY 18, 2026
Dept. 9
Probate Tentative Rulings

2.	25PR0304	ESTATE OF ANDERSON
Petition to Determine Title & Letters of Administration		

Decedent died intestate on February 13, 2024, survived by three adult children. Petitioner Daniel Anderson is decedent's son. Respondent Tammy Diaz is decedent's daughter. Kevin Anderson is the third adult child of decedent.

Petition to Determine Title to Real Property

On November 12, 2025, Daniel Anderson filed a second Petition related to the estate of decedent, to determine title to real property and to set aside a fraudulent conveyance. Respondent Tammy Diaz is decedent's daughter, although the Petition alleges that Tammy Diaz is not an heir or beneficiary of decedent. Respondent's Objection alleges that she is an heir as one of decedent's three children.

According to this Petition, two days before decedent's death of advanced cancer, he executed a deed to real property that is the principal asset of decedent's estate. The stated consideration for the transfer was one dollar.

Petitioner asserts that Respondent was in a position to exert undue influence over decedent at the end of his life, when he was heavily medicated and dying of cancer. Petitioner notes that decedent did not have the benefit of legal counsel in this transaction. Petitioner alleges financial abuse of an elder pursuant to Welfare and Institutions Code § 15610.30. Petitioner requests the court to set aside the grant deed transferring title to the property based on lack of capacity and undue influence, and to determine that title belongs with decedent's estate pursuant to Probate Code § 850. This request is based on decedent's lack of capacity to execute the deed, the exertion of undue influence by Respondent.

A proof of service of the Petition was filed on November 12, 2025, but only names Respondent Tammy Diaz, it does not include the third sibling Kevin Anderson, who was noticed of the Petition for Letters but not noticed of the instant Petition to determine title to the real property.

Objection

Respondent objects to the Petition to Determine Title to Real Property. The Objection is framed in part as an objection to the Petition, but also as an Answer to a Complaint. As part of that Objection Respondent takes issue with various statements in the Petition for Letters; however, the Objection responds to the Petition to Determine Title, not to the Petition for Letters. Excluding the arguments directed at the initial Petition for Letters, Respondent argues that she was not personally served notice of the Petition as required by Probate Code 851(a)(2) and Code of Civil Procedure § 413.10.

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Analysis

Probate Code § 850(a)(2)(d) authorizes "any interested person" to file a Petition "[w]here the decedent died having a claim to real or personal property, title to or possession of which is held by another." Section 851(a)(2) requires notice of such Petition to be served on "[e]ach person claiming an interest in, or having title to or possession of, the property" as would be required for a Summons by Code of Civil Procedure § 413.10: "A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served."

The proof of service of the Petition indicates that service was by mail, which does not meet the statutory requirements. At the hearing on December 29, 2025, the Court continued the matter to allow proper service of the Petition. As of the writing of this Tentative Ruling there is no complete proof of service of the Petition in the Court's file.

Petition for Letters

Daniel Anderson filed a Petition for Letters on October 31, 2025. The Petition requests full authority under the Independent Administration of Estates Act.

The Petition alleges that the Will waives bond but also states that the decedent died intestate.

A Duties/Liabilities statement (DE 147/DE 147s) was filed on October 31, 2025. There is a proof of service of the Petition to administer the estate on file with the Court but it bears no filing date.

Proof of Publication was filed May 6, 2026.

Competing Petition for Letters

Tammy Diaz has now filed a competing Petition for Letters of Administration, requesting full authority. The Petition requests that bond be fixed and furnished by an admitted surety insurer. The Petition indicates that decedent died intestate.

Paragraph 8 of the Petition lists 15 individuals but does not indicate their relationships to decedent.

A Duties/Liabilities statement (DE 147/DE 147s) was filed on April 24, 2026.

Proof of Publication was filed May 6, 2026. The Notice of Petition was filed on April 30, 2026.

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TENTATIVE RULING #2:

- 1. PETITION TO DETERMINE TITLE TO REAL PROPERTY IS DENIED.**
- 2. APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MAY 18, 2026, IN DEPARTMENT NINE TO SELECT A TRIAL DATE FOR THE COMPETING PETITIONS FOR LETTERS.**

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.